

## ASCII MASTER FLOW – PANEL 1/12: Article 39A and the access-to-justice chain

ART 39A -> equal-opportunity justice + free legal aid.

Hussainara Khatoon (1979) -> Art 21 fair procedure, legal assistance and speedy justice.

1987 ACT -> institutions + eligibility + Lok Adalats.

VERDICT: Directive Principle becomes operational through law and remedies.

MUST REMEMBER: Keep ordinary Lok Adalat compromise, Permanent Lok Adalat hybrid power, mediation, arbitration, Gram Nyayalaya and ordinary adjudication distinct.

## ASCII MASTER FLOW – PANEL 2/12: Legal-services authority ladder

NALSA -> national policy and schemes.

SUPREME COURT COMMITTEE -> Supreme Court matters.

SLSA + HIGH COURT COMMITTEE -> State/High Court delivery.

DLSA + TLSC -> district/taluk implementation.

TRAP: statutory SLSA, not SALSAs; bodies are not constitutional courts.

## ASCII MASTER FLOW – PANEL 3/12: Section 12 eligibility and quality gate

STATUS ROUTES -> SC/ST, women/children, disability, custody, workmen and listed vulnerability.

INCOME ROUTE -> prescribed ceiling.

SECTION 13 -> prima facie case.

QUALITY TEST: early advice + competent representation + accessible delivery.

## ASCII MASTER FLOW – PANEL 4/12: Ordinary Lok Adalat jurisdiction

PENDING CASE or PRE-LITIGATION DISPUTE within court jurisdiction.

EXCLUDED -> non-compoundable offence.

PROCESS -> referral/application -> conciliation -> compromise.

State of Punjab v. Jalour Singh (2008): no merits adjudication.

## ASCII MASTER FLOW – PANEL 5/12: Ordinary award, failure and review

SETTLEMENT -> award deemed civil-court decree -> final/binding -> no statutory appeal.

NO SETTLEMENT -> pending case returns / ordinary remedy continues.

WRIT CONTROL -> fraud, no genuine consent, jurisdiction or natural-justice defect.

FINALITY != power to compel compromise.

## ASCII MASTER FLOW – PANEL 6/12: Permanent Lok Adalat jurisdiction

CHAPTER VI-A -> standing body for PUBLIC UTILITY SERVICES.

STAGE -> pre-litigation only.

BAR -> non-compoundable offence + notified pecuniary boundary.

InterGlobe Aviation v. N. Satchidanand (2011): ordinary and Permanent Lok Adalats differ.

CLOSE DISTINCTION: Test each forum by statute, stage, subject matter, consent, merits power, award effect, appeal or review and natural-justice safeguards.

## ASCII MASTER FLOW – PANEL 7/12: PLA conciliation-to-adjudication sequence

APPLICATION -> conciliation papers -> settlement terms -> agreement award.

IF FAILURE -> eligible merits decision.

Bar Council of India v. Union of India (2012) -> design upheld.

Canara Bank v. G.S. Jayarama (2022) -> follow statutory conciliation sequence.

## ASCI MASTER FLOW – PANEL 8/12: Gram Nyayalaya as a statutory court

2008 ACT -> State establishment after High Court consultation.

NYAYADHIKARI -> JMFC qualification.

MOBILE FIRST INSTANCE -> scheduled civil/criminal cases + conciliation.

APPEAL -> District Court / Sessions Court.

TRAP: not Panchayat, khap or Lok Adalat.



## ASCII MASTER FLOW – PANEL 9/12: Family and specialist-court distinctions

FAMILY COURT -> adjudication + conciliation + privacy + High Court appeal.

FAST TRACK -> capacity scheme.

SPECIAL COURT -> parent-statute jurisdiction.

COMMERCIAL COURT -> statutory civil court and case management.

EVENING COURT -> administrative sitting format.

## ASCII MASTER FLOW – PANEL 10/12: Mediation, arbitration and court firewall

Afcons Infrastructure v. Cherian Varkey Construction (2010) -> structured ADR referral.

MEDIATION -> party-made settlement.

ARBITRATION -> private adjudication and statutory award challenge.

ORDINARY LOK ADALAT -> compromise award.

PLA -> limited post-conciliation adjudication.

CURRENT STATUS: 5 SEPTEMBER 2026

S.O. 4384(E) commenced only specified Mediation Act sections.

S.O. 4781(E) established the Mediation Council of India at Delhi on 27 August 2026; this did not commence every remaining provision.

## ASCII MASTER FLOW – PANEL 11/12: Fairness, data and digital access

Patil Automation v. Rakheja Engineers (2022)

-> mandatory commercial pre-institution mediation absent an urgent-relief exception.

CONSENT QUALITY -> advice + no coercion + understood terms.

DIGITAL -> identity, privacy, language, disability and offline option.

CURRENT DATA -> date every count, ceiling and notified service.

## ASCII MASTER FLOW – PANEL 12/12: UPSC forum-selection answer spine

- 1 LEGAL SOURCE.
- 2 SUBJECT / STAGE / COMPOUNDABILITY.
- 3 CONSENT OR MERITS POWER.
- 4 AWARD / APPEAL / REVIEW.
- 5 ACCESS AND POWER-ASYMMETRY SAFEGUARDS.

VERDICT: affordable justice must remain competent and voluntary where required.

Illegality remains reviewable.

LEGAL/SOURCE LIMIT: The Mediation Act remains only partly commenced; S.O. 4781(E) established the Mediation Council of India at Delhi on 27 August 2026.